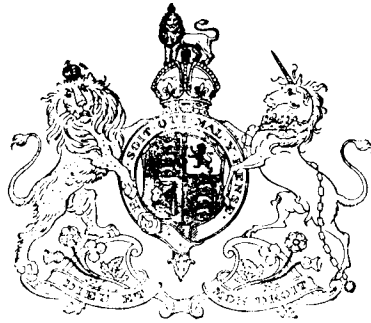


**CHAPTER excix.**

An Act to authorise the mayor aldermen and burgesses of the borough of Chard to purchase the undertaking of the Chard Gas Company and to supply gas within their borough and the neighbourhood thereof and for other purposes. A.D. 1903.

[11th August 1903.]

WHEREAS the borough of Chard in the county of Somerset (in this Act called “the borough”) is under the government of the mayor aldermen and burgesses of the borough of Chard (in this Act called “the Corporation”):

And whereas by the Chard Gas Act 1902 (in this Act called “the Act of 1902”) the Chard Gas Company were incorporated and empowered to supply gas in the borough and in the parishes of Chard and Combe Saint Nicholas in the said county of Somerset: 2 Edw. 7.
c. cxxxiii.

And whereas by section 74 of the Act of 1902 it is enacted as follows:—

- “(1) If the mayor aldermen and burgesses of the borough of Chard (hereinafter called ‘the Corporation’) shall introduce a Bill into Parliament and bonâ fide promote the same in the next available session of Parliament to empower them to purchase the undertaking of the company the company shall not oppose such Bill except in so far as may be necessary in order to secure the insertion therein of clauses to protect their interests with respect to such purchase and for that purpose the company shall be at liberty to petition either or both Houses of Parliament and to appear on such petition by counsel agents and witnesses if they think fit And if the Corporation obtain an Act authorising such purchase and give a written notice of their intention to purchase within six months of the passing of such Act the company shall at the expiration of such six months sell and transfer and the

A.D. 1903.

Corporation shall purchase and acquire the undertaking property rights powers and privileges of the company subject to all their existing mortgages but free from all other obligations and liabilities of the undertaking :

“(2) Any such sale and purchase shall be for such price or consideration and on such terms and conditions as may be agreed upon between the company and the Corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with reference to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression ‘the promoters of the undertaking’ shall mean the Corporation and the expression ‘lands’ shall mean the undertaking of the company Provided that for the purposes of any such arbitration the sale and purchase shall be deemed to be a sale and purchase by compulsion and not by agreement :

“(3) In addition to the sum to be paid by the Corporation to the company under the foregoing provisions of this section the Corporation shall pay to the company the taxed costs of obtaining this Act and the taxed costs and expenses incurred by them of and incident to the winding up of the company and compensation to any officers and servants in the regular employment of the company in respect of any loss of office or diminution of salary or income the amount of such compensation in default of agreement to be determined by arbitration as aforesaid Provided that no officer or servant who has been in the employment of the company for ten years or upwards shall lose his right to compensation as aforesaid by reason of his declining to enter the service of the Corporation Provided also that the arbitrator shall not in assessing the sum to be paid by the Corporation to the company have regard to the fact that the company have obtained this Act :

“(4) The company shall not without the consent of the Corporation raise more than six thousand pounds either by the issue of additional capital or borrowing under this Act before the first day of January one thousand nine hundred and four” :

And whereas prior to the passing of the Act of 1902 the company had borrowed upon mortgage of their undertaking the

sum of three thousand pounds and they have since borrowed further sums under the authority of the said Act and the total amount of the sums so borrowed is in this Act referred to as “the mortgage debt of the company” : A.D. 1903. —

And whereas it is expedient that the gas supply of the borough should be under the control of the Corporation and that the undertaking of the company should be transferred to and vested in the Corporation in manner provided by this Act and that further provision should be made in regard to the supply of gas within the limits of this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas an absolute majority of the whole number of the council at a meeting held on the fifth day of June one thousand nine hundred and two after ten clear days’ notice by public advertisement of such meeting and of the purpose thereof in the *Chard and Ilminster News* a local newspaper published and circulating in the borough such notice being in addition to the ordinary notices required for summoning such meeting resolved that the expense in relation to promoting the Bill for this Act should be charged on the district fund and general district rate :

And whereas such resolution was published twice in the said newspaper and has received the approval of the Local Government Board :

And whereas the propriety of the promotion of the Bill for this Act was confirmed by an absolute majority of the whole number of the council at a further special meeting held in pursuance of a similar notice on the fifth day of February one thousand nine hundred and three being not less than fourteen days after the deposit of the Bill in Parliament :

And whereas the owners and ratepayers of the borough by resolution in the manner provided in the Third Schedule of the Public Health Act 1875 consented to the promotion of the Bill for this Act :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King’s most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

PRELIMINARY.

1. This Act may be cited as the *Chard Corporation Gas Act 1903.* Short title.

A.D. 1903.
Incorporation of Acts.

2. The following Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with and form part of this Act (namely):—

- (1) The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845);
- (2) The Gasworks Clauses Act 1847 (except the provisions thereof with respect to the amount of profit to be received by the undertakers when the gasworks are carried on for their benefit and with respect to the yearly receipt and expenditure of the undertakers); and
- (3) The Gasworks Clauses Act 1871 (except sections 7 8 and 35 thereof):

And with the exceptions aforesaid the provisions of the Gasworks Clauses Act 1847 and of the Gasworks Clauses Act 1871 shall extend and apply to any existing works mains or pipes of the company transferred to the Corporation under this Act as if such works mains and pipes had been constructed laid down and placed by the Corporation under the powers of this Act.

Interpretation.

3. In this Act the several words and expressions to which meanings are assigned in the Acts wholly or partially incorporated herewith have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

- “The Corporation” means the mayor aldermen and burgesses of the borough of Chard :
- “The borough” means the borough of Chard :
- “The council” means the council of the borough :
- “The town clerk” means the town clerk of the borough :
- “The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the borough :
- “The company” means the Chard Gas Company :
- “The Act of 1902” means the Chard Gas Act 1902 :
- “The undertaking of the company” includes all the gasworks mains lands buildings and plant and all other the real and personal property assets and effects of whatever nature and all the rights powers and privileges vested in or belonging to or had or enjoyed by the company at the date of the transfer of their undertaking to the Corporation under the provisions of this Act except—

- (1) The cash balances (other than consumers' deposits in the company's hands or in those of their bankers

or agents at the date of the transfer) and all sums standing to the credit of their reserve fund and all stock-in-trade and stores; A.D. 1903.

(2) All rents and profits of and all book and other debts due to the company and all rates accrued due on the date of the transfer; and

(3) The books and papers relating exclusively to the shareholders in and the constitution of the company:

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security (not being annuities rentcharges or securities payable to bearer) authorised by or under any Act of Parliament passed or to be passed of any local authority as defined by section 34 of the Local Loans Act 1875 other than securities of the Corporation.

4. The limits of this Act for the supply of gas shall be the borough and the parish of Chard in the county of Somerset Limits of Act.
Provided that the Corporation shall not supply gas in pursuance of this Act until they have purchased the undertaking of the company.

5.—(1) If at any time after the date of the transfer any local authority whose district is beyond the borough but as to the whole or any part thereof within the limits of this Act for the supply of gas shall give not less than six months’ notice in writing to the Corporation of their desire to purchase such portion of the gasworks and plant of the Corporation as is contained within the district of such local authority and shall obtain the consent of the Local Government Board to such purchase and shall apply to Parliament or to the Local Government Board for power to purchase such portion of the gasworks and plant of the Corporation (except the mains and pipes or other apparatus which shall be necessary for supplying with gas any other part of the limits of the Corporation for the supply of gas) and to supply gas within such district then it shall not be lawful for the Corporation to oppose such application (except as to the details thereof) and if such powers of purchase and supply be granted the Corporation shall sell and such local authority shall purchase the portion of the gasworks and plant of the Corporation (except as aforesaid) within the district of such local authority at such price being a sum in gross and upon such terms and conditions as shall be fixed in default of agreement by arbitration under the provisions of the Lands Clauses Acts. Sale of plant outside borough.

A.D. 1903.

(2) Any such purchase shall be deemed to be a purpose of the Public Health Act 1875 except so far as the same may be otherwise provided for by Parliament.

(3) The Corporation shall apply the proceeds of any sale under this section in the same manner as they are required to apply money received from sales of land under this Act.

(4) After the completion of such purchase all obligations on the part of the Corporation to supply gas within the district of the purchasing authority shall cease and determine.

PURCHASE OF GAS UNDERTAKING.

Company
to sell their
undertaking
to Corpora-
tion.

6.—(1) The company shall sell to the Corporation and the Corporation shall purchase the undertaking of the company for such price or consideration being a sum in gross and on such terms and conditions as may be agreed upon between the company and the Corporation or as failing such agreement shall be determined by arbitration in accordance with the provisions of the Lands Clauses Acts with respect to the purchase and taking of lands otherwise than by agreement and in the construction of the said provisions the expression “the promoters of the undertaking” shall mean the Corporation and the expression “lands” shall mean the undertaking of the company. Provided that for the purposes of any such arbitration the sale and purchase shall be deemed to be a sale and purchase by compulsion and not by agreement and that the arbitrators or umpire (as the case may be) shall not in assessing the sum to be paid by the Corporation to the company have regard to the fact that the company had obtained the Act of 1902.

(2) Within six months after the passing of this Act the Corporation shall serve upon the company notice of their intention to purchase the undertaking of the company.

(3) The Corporation shall pay the purchase-money to the company on such day as may be agreed between the Corporation and the company or failing agreement on the twenty-fourth day of March the twenty-third day of June the twenty-eighth day of September or the twenty-fourth day of December which shall first happen after the expiration of two months from the determination of the amount of the purchase-money and upon such payment the undertaking of the company with their rights powers and privileges shall by virtue of this Act become and shall thenceforth be transferred to and vested in the Corporation free from all charges debts and liabilities upon or affecting the same other than the mortgage debt of the company and such transfer and vesting are in this Act referred to as “the transfer.”

(4) In addition to the sum to be paid by the Corporation to the company under the foregoing provisions of this section the Corporation shall pay to the company the taxed costs incurred by the company in obtaining the Act of 1902 and the taxed costs and expenses incurred by them of and incident to the winding up of the company and compensation to any officers and servants in the regular employment of the company in respect of any loss of office or diminution of salary or income the amount of such compensation in default of agreement to be determined by arbitration as aforesaid. Provided that no officer or servant who has been in the employment of the company for ten years or upwards shall lose his right to compensation as aforesaid by reason of his declining to enter the service of the Corporation.

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(5) The production of a King's printer's copy of this Act duly stamped together with a receipt for the purchase-money purporting to be signed by three directors of the company or by the cashier of the Bank of England shall (unless it be proved that the purchase-money has not been paid) be conclusive evidence in all courts and proceedings of the transfer to and vesting in the Corporation of the undertaking of the company.

7. The receipt in writing of three directors of the company for any money paid to them by the Corporation shall effectually discharge the Corporation from the sum which in such receipt shall be acknowledged to have been received and from being bound to see to the application thereof and from being answerable or accountable for the loss mis-application or non-application thereof. Provided that if from any cause the Corporation are unable to obtain such receipt from the company they may pay the money into the Bank of England in the name of the Paymaster-General for and on behalf of the Supreme Court to an account to be opened in the matter of this Act and a receipt shall be given to the Corporation by the cashier of the said Bank for the money which shall have the same effect as the receipt of three directors of the company.

Receipt for
purchase
money.

8. The Corporation shall take over all movable stock-in-trade gas coal and other stores at the date of the transfer belonging to the company at such price as failing agreement may be settled by a valuer to be agreed upon or failing agreement to be nominated by the Board of Trade on the application of either party and shall pay for the same within fourteen days after the said price has been agreed or settled as aforesaid and in default of such payment shall pay to the company interest on the amount payable in respect of such stores from the expiration of such fourteen days until the actual payment thereof at the rate of four per centum per annum.

Corporation
to purchase
stock and
stores.

A.D. 1903.

Mortgage debt to continue charge on undertaking.

9. The mortgage debt of the company and the interest accruing thereon after the date of the transfer shall after that date continue to be a charge on the undertaking in the hands of the Corporation to the same extent and with the same incidents as if this Act had not been passed and as if the Corporation were substituted for the company in respect of such mortgage debt.

Company to pay outgoings and be entitled to receipts until transfer.

10. The company shall bear and pay all outgoings of every kind and shall be entitled to all receipts from their undertaking up to the date of the transfer and as from that date all outgoings shall be borne and paid by the Corporation. Provided that nothing in this Act contained shall entitle the company to retain for their own benefit so much of any gas rates or rents or other payments paid or payable in advance as shall be attributable to any period after the transfer but such rates rents or other payments shall be apportioned and so much thereof as is attributable to any period after the transfer shall be paid over by the company to the Corporation.

Maintenance of undertaking by company till transfer.

11. Until the transfer the undertaking of the company shall be maintained and carried on by the company as heretofore in the ordinary course of business but the company shall not without the previous consent of the Corporation under the hand of the town clerk make or enter into any contract agreement or obligation except such as shall be in the ordinary course of the maintenance of the works and the proper conduct of the undertaking.

Liabilities to be defrayed by company.

12. All charges debts and liabilities (other than the mortgage debt of the company) upon or affecting the undertaking or due from or payable by the company which at the date of the transfer shall remain undischarged unpaid or unsatisfied shall be discharged paid or satisfied by the company and if at the date of the transfer any action arbitration or proceeding or any cause of action arbitration or proceeding is pending or existing against or in favour of the company the same shall not abate or be discontinued or in anywise prejudicially affected by reason of the transfer or of anything in this Act but the same may be continued prosecuted and enforced by against or in favour of the company as and when it might have been continued prosecuted and enforced by against or in favour of them if this Act had not passed.

Contracts with company to be binding on Corporation.

13. Subject to the provisions of this Act all agreements conveyances contracts deeds and other instruments entered into or made with or by the company and in force at the time of the transfer shall be as binding and of as full force and effect in every respect against or in favour of the Corporation and may be enforced

as fully and effectually as if instead of the company the Corporation had been a party thereto. A.D. 1903.

14. All books and documents which if the transfer had not been made would have been evidence in respect of any matter for or against the company shall be admitted in evidence in respect of the same or the like matter for or against the Corporation. Books &c.
to remain
evidence.

15.—(1) From and after the date of the transfer the company shall subsist only for the purpose of paying their debts and liabilities (other than the mortgage debt) and of receiving and recovering the sums payable to the company as provided by this Act and distributing the same and the purchase-money and any other moneys payable to the company in accordance with the provisions of this Act and for winding up the affairs of the company and carrying into effect the purposes of this Act so far as they relate to the company and the directors of the company who are in office at the date of the transfer and the survivors or survivor of them shall continue without re-election to hold the office of directors of the company and they or a majority of them shall have full power and authority to take all necessary proceedings for carrying into effect the several purposes of this section. Purposes for
which com-
pany to con-
tinue incor-
porated.
Winding up
of company.

If the number of directors of the company be reduced by death resignation or otherwise below three before the completion of such winding up the continuing directors shall from time to time choose a shareholder or shareholders of the company to fill the vacancy or vacancies so caused.

(2) Forthwith after the date of the transfer the directors of the company shall proceed to wind up the affairs of the company and after payment of the debts and liabilities of the company (other than the mortgage debt of the company) shall pay and distribute their net moneys to and among the several persons who at the date of the transfer are the registered holders of stock or shares in the capital of the company or their respective executors administrators and assigns according to the amount of the maximum dividend payable to each stockholder or shareholder and for the purpose of such distribution the several persons whose names shall appear in the books of the company at the date of the transfer to be the proprietors of stock or shares therein shall unless the contrary be proved to the satisfaction of the directors be considered to be stockholders or shareholders of the company and the receipt in writing of such persons or of their executors or administrators or of the committee or guardian of the estate of any such person who shall be an idiot lunatic or minor shall be an effectual discharge to the

A.D. 1903. --- company and the directors thereof for the money therein expressed to be received and shall exonerate them from any obligation affecting the stock shares or interest in respect whereof that money is paid.

(3) When the directors of the company are for six months after the date of the transfer unable after diligent inquiry to ascertain the person to whom any money ought to be paid or who can give an effectual receipt for the same they may pay the same into the High Court or if not exceeding five hundred pounds into the county court of Somersetshire holden at Chard under any Act for the time being in force for the relief of trustees and every such payment shall effectually discharge the company and the directors thereof from all further liability with respect to the money so paid in.

(4) After the date of the transfer and until the company shall be finally wound up and dissolved the company shall be entitled to retain the directors' minute books the register of stockholders and shareholders and other books relating solely to the holders of stocks or shares in and to the constitution of the company and shall have access at all reasonable times to the other books documents and accounts relating to the transferred undertaking for the purpose of making up the accounts of the company to the date of the transfer and for all other reasonable purposes in relation to the winding up of the company and upon the winding up of the company the said books retained by them shall be handed to the Corporation.

Repeal of Act of 1902. **16.** Upon the purposes specified in the last preceding section being fulfilled the company shall be ipso facto dissolved and thereupon the Act of 1902 shall be by virtue of this Act repealed.

GASWORKS AND LANDS.

Powers as to construction and maintenance of gas-works. **17.**—(1) Subject to the provisions of this Act the Corporation may maintain alter improve enlarge extend and renew or discontinue the existing gasworks upon the lands described in Part I. of the Schedule to this Act and may also upon those lands erect lay down provide maintain alter improve enlarge extend and renew or discontinue additional and other gasworks retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making and storing gas and for supplying gas within the limits of this Act and may make store and supply gas accordingly and may manufacture sell provide supply and deal in coke tar pitch asphaltum ammoniacal

liquor oil sulphate of ammonia chemicals and all other products or residuum of any materials employed in or resulting from the manufacture of gas. A.D. 1903.

(2) The Corporation may store gas upon the lands described in Part II. of the Schedule to this Act.

18. The Corporation may for the purpose of their gas undertaking purchase take on lease and hold (by agreement but not otherwise) in addition to the lands described in the Schedule to this Act any lands and hereditaments not exceeding in the whole four acres which the Corporation may require for the purposes of their gasworks and undertaking but the Corporation shall not create or permit a nuisance on any such lands and no lands shall be used by the Corporation for the purpose of manufacturing gas or residual products except the lands described in Part I. of the Schedule to this Act. Power to purchase lands by agreement. Gas not to be manufactured except on lands scheduled.

19.—(1) The Corporation shall not under the powers of this Act purchase or acquire ten or more houses which on the fifteenth day of December last were occupied either wholly or partially by persons belonging to the labouring class as tenants or lodgers or except with the consent of the Local Government Board ten or more houses which were not so occupied on the said fifteenth day of December but have been or shall be subsequently so occupied. Restriction on taking houses of labouring class.

(2) If the Corporation acquire or appropriate any house or houses for the purposes of this Act in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board by action in the High Court and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the court may if it think fit reduce such penalty.

(3) For the purposes of this section—

The expression “house” means any house or part of a house occupied as a separate dwelling; and

The expression “labouring class” means mechanics artisans labourers and others working for wages hawkers costermongers persons not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income does not exceed an average of thirty shillings a week and the families of any of such persons who may be residing with them.

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Power to
sell lands.

20. Subject to the provisions of the Lands Clauses Consolidation Act 1845 with respect to the sale of superfluous lands so far as such provisions are in each case applicable the Corporation may sell lease and dispose of any lands acquired by them under this Act and not for the time being required for the purposes thereof.

Power to
lay pipes in
streets not
dedicated to
public use.

21. The Corporation may upon the application of the owner or occupier of any premises within the limits of this Act abutting on or being erected in any street laid out but not dedicated to public use supply such premises with gas and may lay take up alter relay or renew in across or along such street such pipes and apparatus as may be requisite or proper for furnishing such supply.

Power to
take licences
for use of
patents.

22. The Corporation may acquire take and use any leave licence or authority to work use exercise and put in practice any invention under letters patent made or to be made granting any right or privilege of working using exercising or vending any invention in relation to the production utilisation and distribution of gas the production of coke tar pitch asphaltum ammoniacal oil and the products from coal and other substances employed in or resulting from the manufacture of gas or otherwise in relation thereto but not so as to acquire any exclusive right to the working use exercising or putting in practice of any such invention.

For protec-
tion of Great
Western
Railway
Company.

23. For the protection of the Great Western Railway Company (in this section referred to as “the Great Western Company”) the following provisions shall except in so far as may be otherwise agreed between the Great Western Company and the Corporation apply and have effect (that is to say) :—

- (1) In laying down altering improving enlarging extending maintaining or renewing or in executing or effecting the repairs or renewals of any mains pipes or other works in the exercise of the powers contained in this Act upon across under or adjoining or in any way affecting the railways lands and property now or hereafter belonging to or used or occupied by the Great Western Company or the bridges approaches viaducts stations or other works or any level crossings over the railways of the Great Western Company the same shall be done under the superintendence (if the same be given) and to the reasonable satisfaction of the principal engineer of the Great Western Company and only according to such plans and in such manner as shall be submitted to and as shall be previously reasonably approved by him in writing Provided that the said engineer shall

be deemed to have approved such plans unless within fourteen days after they are submitted he shall signify to the Corporation his disapproval thereof and his requirements in regard thereto : A.D. 1903. —

- (2) All such works shall be done by and at the expense of the Corporation (except as in this section otherwise provided) who shall also restore and make good to the reasonable satisfaction of the said engineer the roads over or under any bridge or over any level crossing of the railway of the Great Western Company or over the approaches to any such bridge or level crossing so far as the same may be disturbed or interfered with by or owing to any operations of the Corporation. Provided always that should the Great Western Company elect so to do where any mains or pipes require to be laid under or across any level crossing of their railway they may themselves lay the same at the costs charges and expenses of the Corporation :
- (3) All such works and operations and all matters incidental thereto shall be constructed executed and done so as to cause as little injury as may be to such railways bridges level crossings approaches viaducts stations works lands or property and so as to cause no interruption to the passage or conduct of traffic over such railways or at to or from any station thereon :
- (4) If any injury or interruption as aforesaid shall arise from or in any way be owing to any of the acts works operations and matters aforesaid or the leakage or failure of any such mains pipes or works in under or near to any railway bridge level crossing embankment cutting approach viaduct station land works or property of the Great Western Company the Corporation shall make compensation to the Great Western Company in respect thereof the amount of such compensation unless agreed upon to be determined by arbitration in the manner hereinafter provided :
- (5) The Corporation shall pay to the Great Western Company for any easement to be acquired by them across over or under any of the railways works and property of the Great Western Company for constructing or maintaining any of their works such sum either annual or otherwise as may be agreed upon or failing agreement as shall be settled by arbitration in manner provided by the Lands Clauses Acts with respect to the acquisition of lands otherwise than by

A.D. 1903.

agreement and for the purposes of such arbitration the easement so to be taken shall be deemed to be lands so far as respects the proceedings for the acquisition thereof and also for the purposes of such arbitration :

- (6) If the Great Western Company at any time or times hereafter require of which they shall be the sole judges to construct any additional or other works upon their lands or railways or to alter or repair their railways bridges viaducts or works upon across over or under which any of the works of the Corporation may have been constructed or laid the Great Western Company may on giving to the Corporation fourteen days' notice in writing under the hand of their secretary or general manager and in case of emergency of which their engineer shall be the sole judge without notice divert support or carry the said works of the Corporation across over or under their lands railways bridges or works at any other point or otherwise deal with the same in as convenient a manner as circumstances will admit and doing as little damage as may be without being liable to pay compensation in respect of such diversion supporting carrying or dealing with such works :
- (7) Except as in this section otherwise provided any dispute or difference which may arise between the Great Western Company and the Corporation with reference to the provisions of this section or in any way arising thereout or as to any works to be carried out in pursuance thereof shall be settled by arbitration by an engineer or other fit person to be appointed by the Board of Trade on the application of the Great Western Company and the Corporation or either of them.

SUPPLY OF GAS.

Price of gas. **24.** The price to be charged by the Corporation for gas supplied by them to persons who shall take the same by meter shall not at any time exceed five shillings per thousand cubic feet.

Pressure of gas. **25.** All gas supplied by the Corporation to any consumer of gas shall be supplied at such pressure as to balance a column of water from midnight to sunset not less than six-tenths of an inch and from sunset to midnight not less than eight-tenths of an inch in height at the main as near as may be to the junction therewith of the service pipe supplying such consumer and any gas examiner appointed under the Gasworks Clauses Act 1871 may subject to the

terms of his appointment test the pressure at which the gas is supplied and may for that purpose open any street road passage or place vested in or under the control of any local or road authority and the provisions of the Gasworks Clauses Act 1871 with reference to testing of gas and to penalties shall mutatis mutandis apply to such testing of pressure and two hours' previous notice shall be given to the Corporation of the time and place at which such testing shall be conducted.

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26. The prescribed number of candles shall be fourteen.

Quality of gas.

27. The testing place on the lands described in the Schedule to this Act shall be the testing place required to be provided by the Corporation by the Gasworks Clauses Act 1871.

Testing place.

28. The prescribed burner shall be Sugg's London Argand burner No. 1 with a six-inch by one-and-three-quarter-inch glass chimney but if at any time and so long as the gas flame rises above the top of that chimney a six-inch by two-inch chimney shall be used or such other burner as shall for the time being be approved by the Board of Trade.

Burner.

29. In order to enable the Corporation to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect :—

As to construction and placing of pipes &c. between mains and meters.

- (1) The Corporation may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer between the mains of the Corporation and the meter and (so far as the same are intended to be covered over) on the consumer's premises :
- (2) The Corporation may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time :
- (3) The specification shall be published twice in some newspaper circulating within the limits of this Act and a copy thereof shall be kept exhibited in the office of the Corporation :
- (4) Every meter to be used in a new building or a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the main of the Corporation but within the outside wall of the building The provisions of this subsection shall not apply to prepayment meters :

A.D. 1903.

(5) When any such pipe or meter as aforesaid has been laid or placed notice thereof shall be given to the Corporation and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Corporation. Any officer of the Corporation duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the specification of the Corporation or if the meter is not placed as required by this section the Corporation may refuse to supply gas to the premises until the provisions of this section have been complied with :

(6) Any person to whom the Corporation refuse a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the specification of the Corporation make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid.

Corporation to pay interest on money deposited as security for gas meters.

30. If any person is required by the Corporation to give to them security for the payment of the price or rent of a meter the Corporation shall pay interest at the rate of four per centum per annum on every sum of ten shillings deposited by way of such security for every six months during which the same remains in their hands.

Power to supply gas fittings &c. for heating and other purposes. Fittings not subject to distress.

31.—(1) The Corporation may sell let for hire and otherwise deal in and fix repair and remove (but shall not manufacture) engines stoves ranges pipes dynamos motors and other fittings for lighting or motive power for the warming and ventilating of houses and buildings for the cooking of food and for all other purposes for which gas can or may be used and may provide all materials and do all work necessary or proper in that behalf and with respect thereto may demand and take such remuneration or rents and charges and make such terms and conditions as may be agreed upon between the Corporation and the persons to or for whom the fittings are sold let fixed repaired or removed.

(2) Any fittings let for hire under the provisions of this section shall not be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court

or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such fittings have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Corporation as the actual owners thereof. A.D. 1903. ---

32. Twenty-four hours' notice in writing shall be given to the Corporation by every gas consumer before he shall quit any premises supplied with gas by meter by the Corporation and in default of such notice the consumer so quitting shall be liable to pay to the Corporation the money accruing due in respect of such supply up to the next usual period for ascertaining the register of the meter on such premises or the date from which any subsequent occupier of such premises shall require the Corporation to supply gas to such premises whichever shall first occur. Notice of the effect of this enactment shall be endorsed upon every demand note for gas rent payable to the Corporation. Gas consumers to give notice to Corporation before removing.

33. A notice to the Corporation from a consumer for the discontinuance of a supply of gas shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office for the time being of the Corporation. Notice of discontinuance.

34. If a person requiring a supply of gas for any premises occupies or has occupied other premises at which gas was supplied to him by the Corporation and has not paid all gas or meter rent due from him to the Corporation they may refuse to furnish to him a supply of gas for such first-mentioned premises until he pays the same. Power to refuse to supply persons in debt for other premises.

35. No penalty shall be incurred by the Corporation for neglect or refusal to give a supply of gas in accordance with the provisions of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Corporation or was of so slight or unimportant a character as not materially to affect the value of the supply. No penalty in case of unavoidable cause.

36. In the event of any meter used by a consumer of gas being tested in manner provided by the Sale of Gas Act 1859 and being proved to register erroneously within the meaning of the said Act such erroneous registration shall be deemed to have first arisen during the then last preceding quarter of the year unless it be Period of error in defective meters.

A.D. 1903. proved to have first arisen during the then current quarter The amount of the allowance to be made to or of the surcharge to be made upon the consumer by the Corporation shall be paid by or to the Corporation to or by the consumer as the case may be and shall be recoverable in the like manner as gas rents are recoverable by the Corporation.

Corporation
may contract
with local
authorities
for supply
in bulk.

37. The Corporation may contract with any local authority company or persons beyond the limits of this Act (but only with the consent in writing of the local authority of the district within which the supply is to be given and of any company or person supplying gas under parliamentary powers in that district) for the supply to them respectively of gas in bulk upon such terms and conditions and for such periods not exceeding in any case seven years from the making of the contract as shall be agreed upon.

FINANCE.

Power to
borrow.

38.—(1) The Corporation may independently of any other borrowing power borrow at interest money for the following purposes (that is to say):—

(A) For the purchase of the undertaking of the Company and for defraying the costs and expenses incident to such purchase and to the transfer of such undertaking to the Corporation (other than the costs of this Act) and any other sum payable by the Corporation to the company or their officers or servants under the provisions of this Act such sum as may be necessary;

(B) For the payment of the mortgage debt of the company the sum requisite for that purpose;

(c) For paying the costs charges and expenses of this Act as hereinafter provided and for paying the taxed costs charges and expenses incurred by the Corporation in opposing the Bill for the Act of 1902 the sum requisite for those purposes:

And with the consent of the Local Government Board such further money as may be necessary for any of the purposes of this Act or of the gas undertaking of the Corporation.

(2) In order to secure the repayment of the money borrowed under this section and the payment of the interest thereon the Corporation may mortgage or charge the revenue of the gas undertaking of the Corporation and the district fund and general district rate or either of those securities.

(3) The Corporation shall pay off all money borrowed by them under this section and the mortgage debt of the company within

the respective periods (in this Act referred to as “the prescribed period”) following (that is to say):—

A.D. 1903.

As to money borrowed for the said purposes (a) within thirty years from the date or dates of borrowing the same ;

As to the mortgage debt of the company or money borrowed for its repayment within forty years from the date of the transfer ;

As to money borrowed for the said purposes (c) within five years from the date or dates of borrowing the same ;

As to money borrowed with the consent of the Local Government Board within such period as that Board may sanction.

39. The powers of borrowing money given by this Act shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Act shall not be reckoned.

Certain regulations of Public Health Act 1875 as to borrowing not to apply.

40. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions of this Act relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Mode of raising money.

41. Sections 236 to 238 of the Public Health Act 1875 (as to the form register and transfer of mortgages) shall extend and apply to mortgages granted under this Act.

Provisions of Public Health Act as to mortgages to apply.

42. The Corporation shall pay off all money borrowed by them on mortgage under the powers of this Act and the mortgage debt of the company either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which the payment is made or (in the case of the mortgage debt of the company) within one year from the date of the transfer Provided that as between the Corporation and the mortgagees of the company nothing contained in this Act shall empower the Corporation to discharge the mortgage debt of the company except at such times and upon such terms as the company could have discharged the same if this Act had not been passed.

Mode of payment off of money borrowed.

A.D. 1903.
Sinking
fund.

43.—(1) If the Corporation determine to repay by means of a sinking fund any money borrowed by virtue of this Act such sinking fund shall be formed and maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the money for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with the accumulations at a rate not exceeding three per centum per annum will be sufficient to pay off within the prescribed period the money for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called an “accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in statutory securities the Corporation being at liberty to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation:

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will not be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Corporation may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the money for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

A.D. 1903.
Power to
reborrow.

44. If the Corporation pay off any money borrowed by them under this Act otherwise than by instalments or by means of a sinking fund or out of money received on capital account not being borrowed money they may reborrow the same but all money so reborrowed shall be repaid within the prescribed period and shall be deemed to form the same loan as the money originally borrowed and the obligations of the Corporation with respect to the repayment of the loan and to the provision to be made for such repayment shall not be diminished by reason of such reborrowing.

Protection of
lender from
inquiry.

45. A person lending money to the Corporation under this Act shall not be bound to inquire as to the observance by the Corporation of any of the provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Corporation
not to regard
trusts.

46. The Corporation shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Corporation shall be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

Appointment
of receiver.

47.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than five hundred pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Return to
Local Go-
vernment
Board as to
repayment
of debt.

48.—(1) The town clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government

Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the town clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

A.D. 1903.

(2) If it appears to the Local Government Board by that return or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

49.—(1) The Corporation shall apply all money received by them on account of revenue in respect of their gas undertaking in manner and in the order following (that is to say) :—

Application
of revenue
and defi-
ciency of
receipts.

First In payment of the working and establishment expenses and cost of maintenance of the undertaking :

Secondly In payment of the interest on moneys borrowed by the Corporation for the purposes of the undertaking and on the mortgage debt of the company :

Thirdly In providing the requisite appropriations instalments or sinking fund payments in respect of moneys borrowed by the Corporation for the purposes of the undertaking and in respect of the mortgage debt of the company :

A.D. 1903.

Fourthly In extending and improving (if the Corporation think fit) any works for the purposes of the undertaking :

Fifthly In providing a reserve fund (if the Corporation think fit) by setting aside such money as they think reasonable and investing the same and the resulting income thereof in statutory securities and accumulating the same at compound interest until the fund so formed amounts to the maximum reserve fund for the time being prescribed by the Corporation not exceeding a sum equal to one fifth of the aggregate capital expenditure for the time being by the Corporation upon the undertaking which fund shall be applicable to answer any deficiency at any time happening in the income of the Corporation from the undertaking or to meet any extraordinary claim or demand at any time arising against the Corporation in respect of the undertaking or for payment of the cost of renewing any part of the undertaking or for extending and improving any works for the purposes of the undertaking and so that if that fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens Provided that resort may be had to the reserve fund under the foregoing provisions although such fund may not at the time have reached or may have been reduced below the prescribed maximum :

And the Corporation shall carry to the district fund so much of any balance remaining in any year of the income of the undertaking (including the interest on the reserve fund when such fund amounts to the prescribed maximum) as may in the opinion of the Corporation not be required for carrying on the undertaking and paying the current expenses connected therewith.

(2) Any deficiency in the revenue of the said undertaking shall be made good out of the general district rate made next after the deficiency is ascertained.

Application
of money
borrowed.

50. All money borrowed by the Corporation under the powers of this Act shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

Expenses of
execution of
Act.

51. Any expenses of the execution by the Corporation of this Act with respect to which no other provision is made may be defrayed by the Corporation out of the district fund or general district rate.

Proceeds of
sale of sur-
plus lands to

52. Any capital moneys received by the Corporation on the sale of any lands in pursuance of the powers of this Act shall be

distinguished as capital in the accounts of the Corporation and shall be applied in discharge of any moneys borrowed by the Corporation under this Act but shall not be applied to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board and borrowed money discharged by the application of such money shall not be reborrowed.

A.D. 1903.

be treated as capital.

53. The provisions of the Municipal Corporations Acts relating to the keeping and auditing of accounts and the accounts kept of sums of money received and paid under those Acts shall extend to the keeping and auditing of accounts and to the accounts kept of sums of money received and paid in respect of the gas undertaking of the Corporation.

Audit of accounts.

MISCELLANEOUS.

54. The Corporation may erect and maintain dwelling-houses for persons employed by them for the purposes of their gas undertaking upon the lands for the time being belonging to or leased by the Corporation for the purposes of that undertaking.

Dwelling-houses for persons in Corporation's employ.

55. Section 265 (Protection of local authority and their officers from personal liability) of the Public Health Act 1875 shall extend and apply to the purposes of this Act as if the same were re-enacted herein.

Application of section 265 of Public Health Act 1875.

56.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

Inquiries by Local Government Board.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

57.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication.

Authentication and service of notices.

A.D. 1903. — (2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

Recovery of penalties. **58.** Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

Informations by whom to be laid. **59.** Save as herein expressly provided all informations and complaints under or in respect of the breach of any of the provisions of this Act may be laid by an officer of the Corporation authorised in that behalf or by the town clerk.

Penalties to be paid over to treasurer. **60.** All penalties recovered on the prosecution of the Corporation under this Act or under any byelaw thereunder shall be paid to the treasurer of the borough and be by him carried to the credit of the district fund.

Judges not disqualified. **61.** A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being a member of the Corporation or liable to any rate.

Costs of Act. **62.** All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation and may be paid in the first instance out of any moneys in their hands but shall be charged to and recouped by the moneys borrowed under the provisions of this Act.

The SCHEDULE referred to in the foregoing Act.

A.D. 1903.

GAS LANDS.

PART I.

Certain lands in the borough on part of which the existing works of the company are situate lying on the west side of and bounded by Victoria Avenue between the northern boundary of the company's works and the house and premises numbered 10 in Victoria Avenue and on the east side of Furnham Road and bounded in part by that road for a distance of two hundred and twenty-five feet or thereabouts in a southerly direction from the northern boundary of the company's property and in other part by the property numbered 877 on the $\frac{1}{2500}$ Ordnance map (1888 edition) of the parish of Chard and bounded on the north by the house and premises numbered 12 in Victoria Avenue and a house and premises in Furnham Road belonging or reputed to belong to Benjamin Lee and occupied by Septimus Collier and on the south in part by the northern boundary of the said house and premises numbered 10 in Victoria Avenue and in part by an imaginary line drawn in continuation of that boundary to the said property numbered 877 on the said Ordnance map.

PART II.

Certain other lands in the borough being part of the property numbered 870 on the said Ordnance map and lying on the south side of and bounded by the said imaginary line drawn in continuation of the northern boundary of the said house and premises numbered 10 in Victoria Avenue and bounded on the south by other part of the said property numbered 870 on the said Ordnance map on the east by part of the garden of the house numbered 3 in Victoria Avenue and the gardens of the houses numbered 4 to 10 (both inclusive) in the same avenue and on the west by the said property numbered 877 on the said Ordnance map.

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